

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: May 26, 2026 at 1:30 pm

Rulings Posted: 5/22/26 at 3 pm

#	Case Name	Tentative
301	<i>CarParc USA LLC vs. Classic Showcase Inc.</i>	Before the Court at present is the Motion to Quash Service of Summons filed on 11/12/25 by Specially Appearing Defendant CMC Collection, LLC (CMC). The Motion is DENIED. Plaintiff CarParc USA LLC (CarParc) has met its initial burden to demonstrate facts justifying the exercise of personal jurisdiction here. (<i>Rivelli v. Hemm</i> (2021) 67 Cal.App.5th 380, 393.) CarParc has shown that after CMC acquired the subject vehicle, CMC contacted and then hired CarPark to do work on the vehicle, and had the vehicle shipped to CarParc’s premises in California for that purpose. (Baars Decl. ¶ 6.) CMC then negotiated a

		sale of the vehicle to CarParc, while the vehicle was still in CarParc's possession in California. (Id. at ¶ 8.) This action arises directly from that sale. The circumstances here thus demonstrate that CMC purposefully availed itself of this forum, and materially differ from those in <i>Shisler v. Sanfer Sports Cars, Inc.</i> (2006) 146 Cal.App.4th 1254. The burden thus shifts to CMC to demonstrate that the exercise of jurisdiction would be unreasonable. It has failed to meet that burden here. The Motion to Quash is therefore DENIED. CMC's Evidentiary Objections are OVERRULED. Plaintiff is to give notice of this ruling.
302	<i>Klaas vs. Lyft, Inc.</i>	Plaintiff Adrienne Klaas' motion for trial preference is GRANTED. Plaintiff has a substantial interest in the action and has produced sufficient evidence to show she is over 70 years of age and her health is such that a preference is necessary to prevent prejudicing her interest in the litigation. (See Code of Civ. Proc. § 36, subd. (a)(1)-(2); Declaration of Adrienne Klaas ¶¶ 3-9, Exs. A-E.) The court advances trial from 1/25/27 to 9/14/26 at 9:30am in Dept. C24. Parties shall appear as to the status conference. Plaintiff shall give notice.
303	<i>City of Ontario vs. Inland Empire Utilities Agency</i>	Before the court is a Motion to Augment the Administrative Record (Motion) filed by respondent Inland Empire Utilities Agency (Respondent). The Motion is GRANTED.

		The Motion is timely. (<i>See</i>, Rutter, California Practice Guide: Administrative Law Ch. 20-C, Procedural Motions, Section 20:195.) All written evidence before an administrative agency considering and ruling on an issue must be included in the administrative record put before the court for the court’s review. (<i>Consol. Irrigation Dist. v. City of Selma</i> (2012) 204 Cal. App. 4th 187, 201.) The record must include documents referenced by and considered by the agency. (<i>Mejia v. City of Los Angeles</i> (2005) 130 Cal.App.4th 322, 335.) Although the subject documents should have been produced earlier, Respondent has produced a declaration providing a reason for the delay, which the court accepts at face value. (Lopez Decl. ¶¶ 3-7.) To the extent petitioners City of Ontario and Monte Vista Water District (Petitioners together) have due process concerns, the court is open to continuing trial and permitting Petitioner to file an amended trial brief based upon whatever additional information the 15 spreadsheets might have that is applicable to the case. Parties are to come prepared to discuss a potential continuance and new briefing schedule. Petitioners’ objection is overruled as the declaration merely fills in the gaps created by the opposition. (<i>Jay v. Mahaffey</i> (2013) 218 Cal. App. 4th 1522, 1538.) Respondent shall give notice.
304	<i>Vincent vs. Pourtemour</i>	Before the Court is a motion by Defendant Ryan Pourtemour pursuant to Code of Civil Procedure Section 583.310 for an order dismissing the First Amended Complaint (FAC) filed by plaintiff Joseph Vincent. For the reasons set forth herein, the motion is DENIED, without prejudice.

Section 583.310 states: “An action shall be brought to trial within five years after the action is commenced against the defendant.” Section 583.340 states: “In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed: (a) The jurisdiction of the court to try the action was suspended. (b) Prosecution or trial of the action was stayed or enjoined. (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.”

Here, the complaint was filed on March 17, 2021 in San Mateo County. On April 15, 2021 San Mateo County Superior Court entered an order transferring the case to this court. On July 23, 2021 the transfer was completed. While the Court had limited authority to make certain orders during this 99-day period while the transfer was pending, the Court’s jurisdiction “to try the action was suspended.” (*Thompson v. Thames* (1997) 57 Cal. App. 4th 1296, 1303–1304 [“the filing of a motion for change of venue operates as a supersedeas or stay of proceedings, and the court cannot rule on other substantive issues while the motion for change of venue is pending.”].)

With the additional 99 days excluded from the calculation of time as required by Section 583.340, this means the five-year period under Section 583.310 will run on June 24, 2026.

As the five-year period has not yet run, the motion is DENIED, without prejudice.

The Court notes that on March 30, 2026, the parties were ordered to meet and confer regarding the five-year deadline and to either submit a stipulation or make an ex parte application to address the issues. (See ROA 944.) This was well

		before the five-year deadline would run yet the parties have neither submitted a stipulation nor addressed the issue via ex parte. Plaintiff shall give notice.
305	<i>Connor Price vs. Nieves Landscape, Inc.</i>	The unopposed motion to be relieved as counsel of record for plaintiff Kristal Price (Plaintiff) filed by Carlos A. Gomez, Esq. of Sweet James LLP is GRANTED. Moving counsel has complied with the procedural requirements of C.R.C. 3.1362. The court finds good cause to grant the relief requested on the merits. The motion is thus GRANTED. The order granting relief is effective upon filing of a proof of service of the signed order on Plaintiff. Moving counsel shall give notice.
306	<i>Malchow vs. Secure One Capital Corporation</i>	Plaintiff Stephanie Malchow's motion to serve defendant Secure One Capital Corporation through the Secretary of State is DENIED. At the last hearing, the Court noted the moving papers were not properly signed, and there was insufficient evidence showing all efforts were made to properly serve the corporation. Plaintiff was ordered to file updated documents at least 10 days before the next hearing date. However, no supplemental documents have been filed. The clerk shall give notice.
307	<i>Economic Alternatives, Inc. vs. Aphinity, Inc.</i>	The applications of attorneys Luca J. Giovine and Jacob D. Radecki to appear pro hac vice as counsel for plaintiff Economic Alternatives, Inc. in this matter are hereby GRANTED pursuant to California Rules of Court, rule 9.40.

		Economic Alternatives, Inc. shall give notice.
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